

1 _____ BILL NO. _____

2 INTRODUCED BY _____
3 (Primary Sponsor)

4 A BILL FOR AN ACT ENTITLED: "AN ACT REQUIRING CANDIDATES TO DISCLOSE THEIR CITIZENSHIP
5 STATUS; REQUIRING CANDIDATES TO LIST THEIR OTHER COUNTRY OR COUNTRIES OF CITIZENSHIP
6 OR MEMBERSHIP IN A FEDERALLY RECOGNIZED INDIAN TRIBE; REQUIRING CANDIDATE
7 CITIZENSHIP INFORMATION TO BE PUBLICLY AVAILABLE; AMENDING SECTIONS 13-10-201, 13-10-211,
8 AND 13-14-112, MCA; AND PROVIDING AN IMMEDIATE EFFECTIVE DATE."

9
10 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

11
12 **Section 1.** Section 13-10-201, MCA, is amended to read:

13 **"13-10-201. Declaration for nomination -- term limitations.** (1) Each candidate in the primary
14 election, except nonpartisan candidates filing under the provisions of Title 13, chapter 14, shall file a declaration
15 for nomination with the secretary of state or election administrator. Except for a candidate under 13-38-201(4)
16 or a candidate covered under 7-1-205, a candidate may not file for more than one public office. Each candidate
17 for governor shall file a joint declaration for nomination with a candidate for lieutenant governor.

18 (2) A declaration for nomination must be filed in the office of:

19 (a) the secretary of state for placement of a name on the ballot for the presidential preference
20 primary, a congressional office, a state or district office to be voted for in more than one county, a member of
21 the legislature, or a judge of the district court; or

22 (b) the election administrator for a county, municipal, precinct, or district office (other than a
23 member of the legislature or a judge of the district court) to be voted for in only one county.

24 (3) Each candidate shall sign the declaration and send with it the required filing fee or, in the case
25 of an indigent candidate, send with it the documents required by 13-10-203. Unless filed electronically with the
26 secretary of state, the declaration for nomination must be acknowledged by an officer empowered to
27 acknowledge signatures or by the officer of the office at which the filing is made.

28 (4) (a) The declaration for nomination must include an oath of the candidate that includes wording

1 substantially as follows: "I hereby affirm that I possess, or will possess within constitutional and statutory
2 deadlines, the qualifications prescribed by the Montana constitution and the laws of the United States and the
3 state of Montana." The candidate affirmation included in this oath is presumed to be valid unless proven
4 otherwise in a court of law.

5 (b) The declaration for nomination must include a question that the candidate is required to
6 complete about whether the candidate has citizenship of any country other than the United States or is a
7 member of a federally recognized Indian tribe. The question must also require the candidate to list their other
8 country or countries of citizenship, as applicable.

9 (c) The information required in subsection (4)(b) must be posted online in a publicly available place
10 by the secretary of state.

11 (5) The declaration, when filed, is conclusive evidence that the elector is a candidate for
12 nomination by the elector's party. For a partisan election, an elector may not file a declaration for more than one
13 party's nomination.

14 (6) (a) The declaration for nomination must be in the form and contain the information prescribed
15 by the secretary of state.

16 (b) A person seeking nomination to the legislature shall provide the secretary of state with a street
17 address, legal description, or road designation to indicate the person's place of residence. If a candidate for the
18 legislature changes residence, the candidate shall, within 15 days after the change, notify the secretary of state
19 on a form prescribed by the secretary of state.

20 (c) The secretary of state and election administrator shall furnish declaration for nomination forms
21 to individuals requesting them.

22 (7) Except as provided in 13-10-211, a candidate's declaration for nomination must be filed no
23 sooner than 145 days before the election in which the office first appears on the ballot and no later than 5 p.m.,
24 85 days before the date of the primary election.

25 (8) A properly completed and signed declaration for nomination form may be sent by facsimile
26 transmission, electronically mailed, delivered in person, or mailed to the election administrator or to the
27 secretary of state.

28 (9) For the purposes of implementing Article IV, section 8, of the Montana constitution, the

1 secretary of state shall apply the following conditions:

2 (a) A term of office for an official serving in the office or a candidate seeking the office is
3 considered to begin on January 1 of the term for which the official is elected or for which the candidate seeks
4 election and to end on December 31 of the term for which the official is elected or for which the candidate seeks
5 election.

6 (b) A year is considered to start on January 1 and to end on the following December 31.

7 (c) "Current term", as used in Article IV, section 8, of the Montana constitution, has the meaning
8 provided in 2-16-214."

9

10 **Section 2.** Section 13-10-211, MCA, is amended to read:

11 **"13-10-211. Declaration of intent for write-in candidates.** (1) A person seeking to become a write-
12 in candidate for an office in any election shall file a declaration of intent. Except for a candidate under 13-38-
13 201(4) or a candidate covered under 7-1-205, a candidate may not file for more than one public office. The
14 declaration of intent must be filed with the secretary of state or election administrator, depending on where a
15 declaration of nomination for the desired office is required to be filed under 13-10-201, or with the school district
16 clerk for a school district office. When a county election administrator is conducting the election for a school
17 district, the school district clerk or school district office that receives the declaration of intent shall notify the
18 county election administrator of the filing. Except as provided in 13-1-403, 13-1-503, 20-3-305(3)(b), and
19 subsection (2) of this section, the declaration must be filed no later than 5 p.m. on the 10th day before the
20 earliest date established under 13-13-205 on which a ballot must be available and must contain:

21 (a) the candidate's name, including:

22 (i) the candidate's first and last names;

23 (ii) the candidate's initials, if any, used instead of a first name, or first and middle name, and the
24 candidate's last name;

25 (iii) the candidate's nickname, if any, used instead of a first name, and the candidate's last name;

26 and

27 (iv) a derivative or diminutive name, if any, used instead of a first name, and the candidate's last
28 name;

- 1 (b) the candidate's mailing address;
- 2 (c) a statement declaring the candidate's intention to be a write-in candidate;
- 3 (d) the title of the office sought;
- 4 (e) the date of the election;
- 5 (f) the date of the declaration; and
- 6 (g) the candidate's status as a citizen of any country other than the United States or as a member
- 7 of a federally recognized Indian tribe. The declaration must also include the candidate's country or countries of
- 8 citizenship and a list of the country or countries of citizenship, as applicable.
- 9 (h) the candidate's signature.
- 10 (2) A declaration of intent may be filed after the deadline provided for in subsection (1) but no later
- 11 than 5 p.m. on the day before the election if, after the deadline prescribed in subsection (1), a candidate for the
- 12 office that the write-in candidate is seeking dies or is charged with a felony offense and if the election has not
- 13 been canceled as provided by law.
- 14 (3) The secretary of state shall notify each election administrator of the names of write-in
- 15 candidates who have filed a declaration of intent with the secretary of state. Each election administrator shall
- 16 notify the election judges in the county or district of the names of write-in candidates who have filed a
- 17 declaration of intent.
- 18 (4) A properly completed and signed declaration of intent may be provided to the election
- 19 administrator or secretary of state:
- 20 (a) by facsimile transmission;
- 21 (b) in person;
- 22 (c) by mail; or
- 23 (d) by electronic mail.
- 24 (5) A declaration is not valid until the filing fee required pursuant to 13-10-202 is received by the
- 25 secretary of state or the election administrator.
- 26 (6) A write-in candidate who files a declaration of intent for a general election may not file with a
- 27 partisan, nonpartisan, or independent designation.
- 28 (7) The information required in subsection (1)(g) must be posted online in a publicly available place

1 by the secretary of state."

2

3 **Section 3.** Section 13-14-112, MCA, is amended to read:

4 **"13-14-112. Declarations for nomination -- fee -- filing.** (1) Nonpartisan candidates shall file
5 declarations for nomination as required by the primary election laws in a form prescribed by the secretary of
6 state except as provided in 13-14-113. Except for a candidate covered under 7-1-205, a candidate may not file
7 for more than one public office.

8 (2) Declarations may not indicate political affiliation. The candidate may not state in the declaration
9 any principles or measures that the candidate advocates or any slogans.

10 (3) (a) The declaration for nomination must include a question that the candidate is required to
11 complete about whether the candidate has citizenship of any country other than the United States or is a
12 member of a federally recognized Indian tribe. The question must also require the candidate to list their other
13 country or countries of citizenship, as applicable.

14 (b) The information required in subsection (3)(a) must be posted online in a publicly available place
15 by the secretary of state.

16 (4) Each individual filing a declaration shall pay the fee prescribed by law for the office that the
17 individual seeks.

18 (5) Declarations must be filed:

19 (a) in the office of the secretary of state or the appropriate election administrator as provided in 13-
20 10-201; and

21 (b) within the filing period provided in 13-10-201(7) for the office that the individual seeks."
22

23 NEW SECTION. **Section 4. Notification to tribal governments.** The secretary of state shall send a
24 copy of [this act] to each federally recognized tribal government in Montana.

25

26 NEW SECTION. **Section 5. Effective date.** [This act] is effective on passage and approval.

27

- END -